

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.292	0.209	0.010	0.347	0.263
Trial Fee-Shifting	0.281	0.315	0.016	0.371	0.414
Complete Fee-Shifting	0.417	0.092	0.035	0.402	0.214